

September 18, 2013



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11167
(FIFTEENTH REVISION)

EXPIRATION DATE: August 31, 2017

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: The Columbiana Boiler Company, LLC
Columbiana, OH
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, marking, sale and use of a non-DOT specification double containment packaging described in Paragraph 7 for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.240, 173.241, 173.242, 173.243, 173.244 and 173.245 in that non-DOT specification bulk packagings are not authorized except as prescribed herein.
5. BASIS: This special permit is based on the application of Columbiana Boiler Company, LLC dated December 10, 2009, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Thioglycol/2-mercaptoethanol	6.1	UN2966	II
Allyl Alcohol	6.1	UN1098	I (hazard zone B)
Corrosive solids	8	various	I, II, III
Corrosive liquids*	8	various	I, II, III
Flammable solids	4.1	various	I, II, III
Flammable liquids*	3	various	I, II, III
Hexachlorocyclopentadiene	6.1	UN2646	I (hazard zone B)
Miscellaneous hazardous material	9	various	III
Organophosphorous pesticide, liquid, toxic, n.o.s.	6.1	UN3018	I
Toxic liquids*	6.1	various	I, II, III
Toxic liquids, flammable*	6.1	various	I, II, III
Toxic liquid, flammable, organic, n.o.s., inhalation hazard, Packing Group I, Zone B	6.1	UN2929	I (hazard zone B)
Pyrophoric solids	4.2	various	I, II, III

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Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Pyrophoric organometallic compound, water-reactive, n.o.s.	4.2	UN3203	I
Water-reactive solids	4.3	various	I, II, III

* Materials which are poisonous by inhalation must meet the criteria contained in paragraph 7.a.(8). Hazard Zone A materials are not authorized.

** Materials which have an identification number shown as "various" are authorized only if a bulk packaging is authorized in § 172.101 Hazardous Materials Table Column (8C).

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) Prescribed packagings are Models A and B of a non-DOT specification container. Both models incorporate a double containment design consisting of an inner packaging constructed of steel, surrounded by insulation and enclosed in an outer steel packaging. The double walled vessel is mounted in an outer steel frame on a steel pallet. No bottom outlets are allowed. Both inner and outer packagings must have minimum wall thicknesses of 2.85 mm (0.112 inches) steel. The Model A inner packaging must have formed heads and the Model B inner packaging must have ASME flanged and dished heads, both with a minimum thickness of 3.2 mm (0.126 inches) steel prior to forming and 3.05 mm (0.120 inches) after forming. The Model A container must be as shown on Eco-Pak Drawing Number M7 Rev. 1 dated March 15, 2002 and the Model B container must be as shown on Eco-Pak Drawing Number 21089/60 Rev. 5 dated March 15, 2002 on file with Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

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(2) The inner packaging must be of seamless or welded steel construction or a combination of both. All welds must be full penetration butt welds performed by qualified welders who use weld procedures that meet the requirements of Section IX of the ASME Code.

(3) All mountings such as skids, fastenings, brackets, lifting lugs, etc., must be designed to meet the requirements for tank mountings specified in § 178.245-4.

(4) Pressure relief devices must be provided to conform with the requirements of § 178.245-5(c) and § 173.32. All valves, fittings, accessories, safety devices, and gages must be protected against mechanical damage as specified in § 178.245-5(a) and (b).

(5) Packaging design criteria:

Model	Design Pressure	Gross Volume		Gross Weight	
		Minimum	Maximum	Minimum	Maximum
A	280 kPa 40 psig	450 L 119 Gal	946 L 250 Gal	2000 kg 4400#	2853 kg 6300#
B	690 kPa 100 psig	227 L 60 Gal	946 L 250 Gal	1000 kg 2200#	2853 kg 6300#

(6) Insulation in the side annulus must be equivalent to or greater than 154 mm (6 inches) thick fiberglass insulation compressed to 39 mm (12 inches). Insulation in the ends must be equivalent to or greater than 39 mm (12 inches) thick plywood. The insulation material must be compatible with both the inner and outer packagings. For materials which are poisonous by inhalation, the insulation system must be in conformance with the requirements contained in § 172.102(c)(3) Special Provision B14.

(7) Packages containing materials poisonous by inhalation must have the inner tank and fittings constructed of stainless steel material that is compatible with the lading. The minimum thickness requirements of § 172.102(c)(3) Special Provisions B32, T26 and T45 are waived.

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(8) Materials with a vapor pressure greater than 310 kPa absolute (45 psia) at 46EC (115EF) are not authorized. Additionally, materials which are poisonous by inhalation must have a vapor pressure of less than 207 kPa absolute (30 psia) at 46EC (115EF).

b. TESTING - Each new package must be hydrostatically pressure tested for one hour at the following test pressures:

Model A	-- 414 kPa (60 psig)
Model B	-- 1034 kPa (150 psig)

Additionally, each package must be hydrostatically retested and reinspected at least once every five years as specified in § 180.605(g) for DOT Specification 51 portable tanks, at the original qualification test gauge pressure shown above, for a period of 15 minutes.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modifications or changes are made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.

d. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

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- e. During transportation packages may not be stacked more than two high.
- f. This special permit serves as a Competent Authority Approval (CA-1996120005) issued by the Associate Administrator for Hazardous Materials Safety of the United States Department of Transportation, in accordance with Section 6.7.1.2 of the International Maritime Dangerous Goods (IMDG) Code.
- g. MARKING - Each package must be marked on two sides, in letters and numerals at least 51 mm (2 inches) high on a contrasting background, "DOT-SP 11167".
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation laws, U.S.C. 5101 et seq.:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

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No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SGrey